

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Coleson Smith	Team: Squad #01	CCRB Case #: 202202367	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 04/12/2022 9:13 PM, Wednesday, 04/13/2022 1:00 AM	Location of Incident: Jamaica Long Island Rail Road station; § 87(2)(b) Hospital	18 Mo. SOL 10/12/2023	Precinct: 103
Date/Time CV Reported Thu, 04/14/2022 8:30 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 04/14/2022 8:30 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Cody Duffy	06180	966549	103 PCT
2. PO Michael Porcelli	06675	966781	103 PCT
3. PO Christopher Neun	16699	968667	103 PCT
4. PO Wilmar Jeangilles	10233	966119	103 PCT
5. PO Tyler Harper	24952	969772	103 PCT
6. PO Kevin Greaney	30772	966082	103 PCT
7. PO Derval Whyte	25206	971274	103 PCT
8. PO Mark Anderson	27500	950003	PBQS SU PST
9. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Alexander Basile	18136	969514	103 PCT
2. SGT Suzanne Lutz	01270	943677	103 PCT
3. PO Gregory Gromling	14995	956704	103 PCT
4. PO Garrett Poliey	10508	965421	103 PCT
5. SGT Michael Filomena	01973	954808	103 PCT
6. PO Michael Buckleman	29745	936255	103 PCT
7. PO Keith Gordon	09448	959669	107 PCT
8. PO Paul Jackson	11920	949135	103 PCT
9. PO Alex Mills	09578	959819	PBQS SU PST
10. PO Kevin Donohue	07469	953824	107 PCT
11. LT Robert Wagner	00000	945088	107 PCT
12. PO Jamal Johnson	11219	973876	103 PCT
13. PO Cameron Deluise	06306	967039	103 PCT
14. SGT Timothy Gernon	02070	946482	103 PCT
15. PO Joseph Ledogar	11560	970657	103 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
16. PO Andonios Constantatos	25868	959563	PBQS SU PST
17. PO Melissa Gillott	26391	967085	103 PCT
18. PO Paul Petrone	30070	967254	103 PCT
19. PO Justin Vera	14889	968175	103 PCT
20. PO Ariana Jaramillo	01981	970617	103 PCT
21. PO Khrishan Jainaraine	15624	960718	103 PCT
22. PO Stevie Williamson	14402	952348	103 PCT
23. PO Felicia Gordon	24210	967091	103 PCT
24. PO Anthony Fletcher	17302	967875	103 PCT
25. LT Alex Morocho	00000	939794	103 PCT
26. SGT Marco Destefano	03914	941655	103 PCT
27. PO John Siderius	26528	971233	103 PCT
28. PO Marcio Granodeoro	12282	965733	103 PCT
29. PO Vincent Pastore	24978	971172	103 PCT
30. PO Daniel Efinger	16366	957561	INT FIO PRG
31. PO Jeremy Hametz	16242	957655	INT FIO PRG

Officer(s)	Allegation	Investigator Recommendation
A . PO Derval Whyte	Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Derval Whyte used a non-lethal restraining device on § 87(2)(b)	A . Within NYPD Guidelines
B . PO Kevin Greaney	Abuse: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Kevin Greaney stopped § 87(2)(b)	B . Substantiated
C . PO Michael Porcelli	Abuse: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Michael Porcelli frisked § 87(2)(b)	C . Substantiated
D . An officer	Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, an officer an used physical force against § 87(2)(b)	D . Unfounded
E . PO Cody Duffy	Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Cody Duffy used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . PO Mark Anderson	Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Mark Anderson used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . PO Wilmar Jeangilles	Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Wilmar Jeangilles used physical force against § 87(2)(b)	G . Within NYPD Guidelines
H . PO Christopher Neun	Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Christopher Neun used physical force against § 87(2)(b)	H . Within NYPD Guidelines
I . PO Tyler Harper	Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Tyler Harper used physical force against § 87(2)(b)	I . Within NYPD Guidelines
J . PO Michael Porcelli	Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Michael Porcelli used physical force against § 87(2)(b)	J . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
K . PO Christopher Neun	Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Christopher Neun used physical force against § 87(2)(b)	K . Substantiated
L . PO Michael Porcelli	Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Michael Porcelli used physical force against § 87(2)(b)	L . Substantiated
M . PO Cody Duffy	Discourtesy: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Cody Duffy was discourteous to individuals.	M . Substantiated
N . PO Cody Duffy	Force: On April 13, 2022, at § 87(2)(b) Hospital, Police Officer Cody Duffy used physical force against § 87(2)(b)	N . Unable to Determine
O . PO Cody Duffy	Force: On April 13, 2022, at § 87(2)(b) Hospital, Police Officer Cody Duffy hit § 87(2)(b) against an object.	O . Unfounded

Case Summary

On April 14, 2022, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System.

On April 12, 2022, at approximately 9:13 P.M., in front of 93-02 Sutphin Boulevard, Police Officer Derval Whyte utilized his taser on § 87(2)(b) (**Allegation A: Force: within NYPD guidelines**). Police Officer Kevin Greaney stopped § 87(2)(b) (**Allegation B: Abuse of Authority: substantiated**) and Police Officer Michael Porcelli frisked him (**Allegation C: Abuse of Authority: substantiated**). An officer pushed § 87(2)(b) (**Allegation D: Force: unfounded**). Police Officer Cody Duffy pushed § 87(2)(b) (**Allegation E: Force: within NYPD guidelines**). Police Officers Mark Anderson, Wilmar Jeangilles, Christopher Neun, Tyler Harper and PO Porcelli took § 87(2)(b) to the ground (**Allegations F-J: Force: within NYPD guidelines**). PO Neun punched § 87(2)(b) in the head (**Allegation K: Force: substantiated**) and PO Porcelli punched § 87(2)(b) in the torso (**Allegation L: Force: substantiated**). PO Duffy was discourteous to individuals (**Allegation M: Discourtesy: substantiated**).

On April 13, 2022, at approximately 1:00 A.M., inside § 87(2)(b) Hospital, PO Duffy dragged § 87(2)(b) from a hospital bed onto the floor (**Allegation N: Force: unable to determine**). PO Duffy hit § 87(2)(b) face against a door (**Allegation O: Force: unfounded**).

BWC was obtained from 39 officers (**01-55 Board Reviews**). § 87(2)(b) provided two cell phone videos (**56-57 Board Reviews**).

§ 87(2)(b) and § 87(2)(b) were arrested (**58-59 Board Reviews**). § 87(2)(b) was charged with resisting arrest, obstruction of governmental administration, and disorderly conduct. § 87(2)(b) was charged with assault in the third degree.

Findings and Recommendations

Allegation (A) Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Derval Whyte used a non-lethal restraining device on § 87(2)(b)

§ 87(2)(b) stated he got into an argument with another person near Sutphin Boulevard and 91st Avenue (**60 Board Review**). It did not get physical. He was not intoxicated. Afterwards, he walked toward the Jamaica Long Island Railroad (LIRR) train station to catch a train back to his home in Brooklyn. As he neared the intersection of Sutphin Boulevard and Archer Avenue, PO Whyte and PO Garrett Poliey, of the 103rd Precinct, approached him in front of Kennedy Fried Chicken and said, “come over here,” at which point he ran toward the train station. As he began to ascend the stairs, PO Whyte used a taser on him. § 87(2)(b) lost consciousness as a result of being struck in the back by the taser. An ambulance subsequently brought him to § 87(2)(b) Hospital.

At 00:40 in PO Whyte’s BWC, § 87(2)(b) wearing jeans and a white tank top, walks towards PO Whyte and PO Poliey as they stand on a sidewalk in front of 91-16 Sutphin Boulevard, and says something to PO Poliey, though the audio does not begin until 01:00 (**01 Board Review**). A man, identified by investigation as § 87(2)(b) enters the frame clutching his bloodied nose and points in § 87(2)(b) direction. As he does so, § 87(2)(b) begins walking southbound toward the train station. PO Whyte and PO Poliey follow him. Near the northeast corner of Sutphin Boulevard and Archer Avenue, PO Poliey says, “come here” and reaches for § 87(2)(b) left arm, at which point § 87(2)(b) pulls it away from PO Poliey and runs southbound across Archer Avenue. PO Whyte and PO Poliey run after him. At 01:16, PO Whyte has his taser pointed in front of him as § 87(2)(b) turns to the right toward the LIRR stairs. At 01:18, as § 87(2)(b) reaches the lowest step of the stairs, PO Whyte fires his taser at § 87(2)(b) back. § 87(2)(b) falls to the

stairs, landing on the front of his body and then rolls onto his back and sits up. He does not appear to lose consciousness at any time. At 01:36, PO Whyte handcuffs § 87(2)(b) hands in front of him as he sits on the stairs. At 03:58, PO Whyte requests two ambulances to his location, one for § 87(2)(b) and one for § 87(2)(b) and escorts § 87(2)(b) to the LIRR train station where he identifies § 87(2)(b) at 07:01. PO Poliey's BWC captures § 87(2)(b) get into a male's face at 00:38, just prior to approaching PO Poliey, but it was not clear whether he made physical contact with the male. PO Poliey's BWC fell to the ground during the foot pursuit and did not capture PO Whyte's taser deployment (02 Board Review).

PO Whyte stated that he observed § 87(2)(b) punch a man, identified by investigation as § 87(2)(b) (61 Board Review), several times near Sutphin Boulevard and 91st Avenue on the sidewalk before walking in the officers' direction (62 Board Review). At the time of the incident, he knew § 87(2)(b) had a history of violence, and had been arrested before on gun charges. Then § 87(2)(b) approached PO Whyte and pointed towards § 87(2)(b) stating that § 87(2)(b) had punched him in the face. At that point, PO Whyte decided to arrest § 87(2)(b). When he and PO Poliey approached § 87(2)(b) and ordered him to stop, he smelled alcohol on § 87(2)(b) breath. During the foot pursuit, when § 87(2)(b) neared the stairs to the train platform, PO Whyte deployed his taser to take § 87(2)(b) into custody, and to protect himself and the community from harm because he had already assaulted two civilians. When the taser prongs struck § 87(2)(b) he fell onto the stairs and became compliant.

Threat Resistance Injury Form #§ 87(2)(b) states that § 87(2)(b) was "visibly agitated, aggressive, and refusing all verbal commands" before fleeing on foot (63 Board Review). When PO Whyte deployed his taser, "both prongs made contact with the subject's back immobilizing the subject to the ground where officers were able to handcuff subject." The Taser Data Sheet states that PO Whyte's taser was triggered one time, for five seconds (82 Board Review).

NYPD Patrol Guide Procedure No. 221-08 states that "A CEW [Conducted Electrical Weapon] should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present" (64 Board Review). Active resisting "includes physically evasive movements to defeat a member of the service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody." Officers must consider the "totality of circumstances when deciding the reasonable amount of force necessary to overcome resistance when effecting an arrest." Such factors include: a. The nature and severity of the crime/circumstances; b. Actions taken by subject; c. Duration of action; d. Immediacy of perceived threat or harm to subject, members of the service, and/or bystanders; e. Whether the subject is actively resisting custody; f. Whether the subject is attempting to evade arrest by flight; g. Number of subjects in comparison to number of MOS; h. Size, age, and condition of subject in comparison to MOS; and i. Subject's violent history, if known." "Members should consider the severity of the offense, subject's threat level to others, and the risk of injury to the subject before deciding to use a CEW on a fleeing subject. [...] All applications must be independently justifiable, and the risks should be weighed against other force options."

BWC footage showed that at the time PO Whyte deployed his taser, he was chasing § 87(2)(b) who was actively fleeing custody. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore

recommended that **Allegation A** be closed as **within NYPD guidelines**.

Allegation (B) Abuse of Authority: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Kevin Greaney stopped § 87(2)(b)

Allegation (C) Abuse of Authority: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Michael Porcelli frisked § 87(2)(b)

It is undisputed that § 87(2)(b) filmed part of § 87(2)(b) arrest. As he filmed, PO Greaney approached him and ordered him to take his hand out of his pocket. § 87(2)(b) refused, at which point PO Porcelli, PO Jeangilles, and PO Basile surrounded § 87(2)(b) and assisted PO Greaney with removing § 87(2)(b) hand from his pocket. Upon removing § 87(2)(b) hand, PO Porcelli frisked the front pockets of § 87(2)(b) jacket.

§ 87(2)(b) did not allege a frisk; it was pled based on BWC footage.

§ 87(2)(b) stated that he was an acquaintance of § 87(2)(b) and that he was with him prior to the foot pursuit. When § 87(2)(b) arrived at the stairs, § 87(2)(b) was already in handcuffs (**65 Board Review**). § 87(2)(b) took out his phone and began filming. As he filmed, more than ten officers responded. PO Greaney ordered § 87(2)(b) to remove his hand from his pocket. § 87(2)(b) responded, “For what?” PO Greaney ordered § 87(2)(b) a second time to remove his hand from his pocket and added that he would make him remove his hand. At that point, several other officers approached, and PO Greaney grabbed § 87(2)(b) left arm with both his hands and pulled it upward. § 87(2)(b) told him it was not a crime or violation to have his hand in his pocket and asked why the officers were touching him. When § 87(2)(b) removed his hand, the officers saw that his pocket was empty.

The two cell phone videos provided by § 87(2)(b) were consistent with § 87(2)(b) testimony, and with BWC footage of the incident (**56-57 Board Review**). § 87(2)(b) recorded the first video while an unidentified civilian recorded the second. A screenshot taken at 01:22 in the video provided by the unidentified civilian shows a side view of § 87(2)(b) with his hand in his pocket prior to being stopped by PO Greaney (**83 Board Review**).

PO Greaney’s and PO Porcelli’s BWC videos were consistent. At 00:55 in PO Greaney’s BWC footage, § 87(2)(b) is standing rear handcuffed near the base of the stairs to Tracks 1 and 2 (**03 Board Review**). A crowd of approximately seven people, including § 87(2)(b) are standing within twenty feet of § 87(2)(b). At 01:13, § 87(2)(b) is standing with his phone held up at shoulder height in his right hand, pointed toward § 87(2)(b) and with his left hand in the front pocket of his jacket. § 87(2)(b) is looking in the opposite direction of § 87(2)(b). A screenshot from 01:13 in PO Greaney’s BWC footage shows a head on view of § 87(2)(b) with his hand in his pocket (**84 Board Review**). At 01:15, PO Greaney points towards § 87(2)(b) hand and states, “Yo, take your hand out of your pocket ... Take your hand out of your pocket or I’m going to move it out of your pocket.” § 87(2)(b) looks at PO Greaney, rolls his eyes, sucks his teeth and looks away, at which point PO Greaney steps within a foot of § 87(2)(b) and grabs his left wrist with his right hand. PO Porcelli approaches to the left of PO Greaney and grabs the front of § 87(2)(b) jacket with both hands. PO Basile approaches § 87(2)(b) from behind. As the officers surround him, § 87(2)(b) repeatedly asks, “Why you touching me? It’s not a crime to have my hand in my pocket.” At 01:24, PO Jeangilles joins the officers and grabs § 87(2)(b) by the left elbow. He, PO Porcelli, and PO Greaney all continue to order him to remove his hand. At 01:42, PO Greaney and PO Jeangilles pull § 87(2)(b) left hand upward and out of his pocket. At 01:45 of PO Greaney’s and 01:59 in PO Porcelli’s BWC (**08 Board Review**) footage, immediately after § 87(2)(b) hand is removed, PO Porcelli squeezes the outside of the front of § 87(2)(b) jacket with both of his hands.

PO Greaney stated that § 87(2)(b) was standing several feet away from the crowd on his own when he arrived on scene (66 Board Review). PO Greaney stated he recognized § 87(2)(b) because he is a known gang member and drug dealer on the block where the incident took place, and because he is on probation for possession of a firearm (102 Board Review). He added that at the time of the interview, § 87(2)(b) was a possible suspect in an ongoing shooting investigation stemming from a previous incident (the investigation found that he had a witness only I-card – 105 Board Review). § 87(2)(b) was silently recording the officers on his phone with his right hand, and had his left hand in his jacket pocket, pointing downwards, which indicated to PO Greaney that he may be holding something. He stated the contents of the pocket “looked heavy.” He could not see anything other than § 87(2)(b) hand in his pocket. § 87(2)(b) left arm was flared outward and formed a 90-degree angle at the elbow. PO Greaney stated that from his experience, people flare their arms outward like § 87(2)(b) was when they are going to grab their gun. He stated it is called “the jackknife effect.” Given § 87(2)(b) criminal history, and the placement of his hand in his pocket, and his flared arm, PO Greaney believed that § 87(2)(b) may have been concealing a firearm in his jacket pocket. He ordered § 87(2)(b) to remove his hand out of concern for the safety of everyone present. Once the officers removed his hand, PO Greaney was satisfied and considered the interaction finished. He and the other officers let go and stepped away. He did not consider the interaction a formal stop.

PO Porcelli’s testimony was largely consistent with PO Greaney’s (67 Board Review). He stated that § 87(2)(b) left hand was clenched in his pocket and his arm was “tensed,” meaning it did not appear slack. He stated it appeared as though § 87(2)(b) was pushing something in his pocket. He did not see a particular shape, or an impression left in the fabric of § 87(2)(b) jacket. He did not see an outline of anything in the jacket. He stated he frisked the outside of § 87(2)(b) pockets as PO Greaney and PO Jeangilles removed his hand from his pocket. He did not feel anything except for a hard tissue.

Per Patrol Guide Procedure 212-11, absent reasonable suspicion that a person is armed and dangerous, there remain tactics for officer safety that an officer may use short of a frisk when the officer reasonably perceives his safety is at risk. These include ordering the individual to take his hands out of his pockets...grabbing the person’s hands, if the circumstances suggest the person may be grabbing a weapon, or forcibly removing the person’s hands from his pockets, if the individual refuses to remove them from his pockets. During a Level 1 or Level 2 encounter, an officer may not create a situation (either by words or actions) where a reasonable person would not feel free to walk away unless they have reasonable suspicion that the person committed, was committing, or was about to commit a felony or Penal Law misdemeanor (103 Board Review).

Per the ruling in *People v. De Bour*, 40 N.Y.2d 210 (1976), where a police officer entertains a reasonable suspicion that a particular person has committed, is committing, or is about to commit a felony or misdemeanor, an officer may forcibly stop and detain that person (68 Board Review). A stop is understood as any encounter between a civilian and a member of the service in which a reasonable person would not feel free to disregard the officer and walk away. Additionally, an officer may frisk a person when he reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed.

Per the ruling in *People v. Boulware*, 130 A.D.2d 370 (1987) (85 Board Review), the court found that the police officers’ belief that the defendant was a person known to have previous gun possession arrests, was an insufficient basis upon which to support an objective suspicion of present criminal activity.

The court found in *People v. Prochilo*, 41 N.Y.2d 759 (1977) (**104 Board Review**) that officers must have proof of a describable object or of describable conduct that provides a reasonable basis for the police officer's belief that the defendant had a gun in his possession. A non-descript heavy object in a pocket was deemed insufficient to provide reasonable suspicion.

§ 87(2)(g)

§ 87(2)(g)

it is therefore recommended that Allegations B and C be closed as substantiated.

Allegation (D) Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, an officer used physical force against § 87(2)(b)

Allegation (E) Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Cody Duffy used physical force against § 87(2)(b)

Allegation (F) Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Mark Anderson used physical force against § 87(2)(b)

Allegation (G) Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Wilmar Jeangilles used physical force against § 87(2)(b)

Allegation (H) Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Christopher Neun used physical force against § 87(2)(b)

Allegation (I) Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Tyler Harper used physical force against § 87(2)(b)

Allegation (J) Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Michael Porcelli used physical force against § 87(2)(b)

Once the officers released their grips on § 87(2)(b) he stated an officer (he did not know who) pushed him from behind (**65 Board Review**). When he turned around, he saw PO Duffy and told him “y’all not tough, I could take all of y’all.” PO Duffy then used both of his hands to grab § 87(2)(b) by his shoulders. At this point, several other officers, identified via investigation as PO Anderson, PO Jeangilles, PO Neun, PO Harper, and PO Porcelli, also grabbed § 87(2)(b) and brought him to the ground.

PO Basile, PO Anderson's, and PO Greaney's BWC footage are consistent with each other. At 02:32 in PO Basile's BWC footage, as the officers release their grips on § 87(2)(b) he turns to PO Duffy, who is within two feet of him, and states, "Get the fuck off me" (04 Board Review). PO Duffy takes a half step toward § 87(2)(b) so that his stomach is pressed against § 87(2)(b) left elbow. § 87(2)(b) lightly swipes his elbow across PO Duffy's stomach. PO Duffy tells § 87(2)(b) not to touch him. § 87(2)(b) then moves his face within a foot of PO Duffy's face and twice shouts, "You not tough!" PO Duffy grabs § 87(2)(b) jacket near his collarbones and pushes him several steps backward and tells him to back up. At 01:42 in PO Anderson's BWC footage, PO Anderson takes several steps toward § 87(2)(b) after he shouts, "You not tough!" (05 Board Review). PO Anderson then assists PO Jeangilles, PO Harper, PO Neun, and PO Porcelli with bringing § 87(2)(b) to the ground. At 02:01 in PO Greaney's footage, as PO Duffy is pushing § 87(2)(b) backwards, § 87(2)(b) grabs PO Duffy's jacket with his right hand and plants his left foot before being taken to the ground by the officers (03 Board Review). At no point is any officer seen pushing § 87(2)(b) from behind.

PO Duffy's and PO Neun's statements were largely consistent. PO Duffy stated that as the officers stepped back, § 87(2)(b) turned toward PO Duffy and threw his left elbow at him, which made contact with his chest (70 Board Review). PO Duffy responded, "Don't touch me." § 87(2)(b) then got in PO Duffy's face and said, "You're not tough." PO Duffy told him to back up, but § 87(2)(b) got closer to the point where he was "basically spitting in [PO Duffy's] face." PO Duffy repeated for him to back up and grabbed § 87(2)(b) by his shoulders and pressed forward with the intent of guiding him back toward the crowd. As he guided § 87(2)(b) back, he believed the other officers nearby must have thought he was struggling with him because they then grabbed § 87(2)(b) and took him to the ground. PO Neun stated that when § 87(2)(b) refused to move back, the officers decided to place him in custody (71 Board Review) so PO Neun assisted the officers with arresting § 87(2)(b) as he saw they were having difficulty getting him to comply. He did not recall who made the decision to arrest § 87(2)(b) actively resisted and did not give the officers his hands, at which point "a handful" of officers took him to the ground so that they could more easily place him in handcuffs. When § 87(2)(b) was taken to the ground, he landed on his stomach.

Patrol Guide Procedure 221-01 states "Force may be used when it is reasonable to ensure the safety of a member of the service [...] or when it is reasonable to place a person in custody or to prevent escape from custody" (72 Board Review).

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **unfounded**.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **within NYPD guidelines**. § 87(2)(g)
his resistance to PO Duffy's push shown on BWC footage, § 87(2)(g)

It is therefore recommended that **Allegations F-J** be closed as **within NYPD guidelines**.

Allegation (K) Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Christopher Neun used physical force against § 87(2)(b)

Allegation (L) Force: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Michael Porcelli used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) was punched multiple times in the head and torso after being taken to the ground.

§ 87(2)(b) alleged that while he was on the ground, officers kicked and punched him in the face and ribs. He was kicked in the face twice but did not recall how many times he was punched. An officer told him to stop resisting. Officers then handcuffed him on the ground. § 87(2)(b) stated that he sustained a cut to his face. He did not complete HIPAA forms sent to him by the CCRB.

PO Basile, PO Deluise, and PO Neun's BWC were consistent with each other. At 02:46 in PO Basile's BWC footage, § 87(2)(b) is lying on the ground with PO Porcelli (26-year-old White male with black hair pictured near the center of the screen with "NYPD Police" patch on his back) lying on top of him, and PO Jeangilles, PO Anderson, and PO Neun leaning over him (**04 Board Review**). Additional officers are standing around them. Several civilians are in the vicinity, some watching § 87(2)(b) arrest, but none get close to or interfere. Two seconds later, PO Neun, (25-year-old White male with brown hair and brown beard pictured toward the center of the screen) cocks his fist and throws approximately six punches towards the ground (contact with § 87(2)(b) is not captured). At the time, at least five officers are standing directly over § 87(2)(b) and looking down at him. PO Porcelli, still lying on top of § 87(2)(b) punches him 19 times in quick succession on the left side of his torso. At 01:42 in PO Deluise's BWC footage, PO Porcelli, while punching § 87(2)(b) has his left arm hooked through § 87(2)(b) left arm, which § 87(2)(b) is holding stiffly at his side (**06 Board Review**). At 01:28 in PO Neun's BWC footage, § 87(2)(b) is brought to the ground (**07 Board Review**). § 87(2)(b) right arm is positioned in front of him, his elbow bent at a 90-degree angle and he is sitting up. PO Porcelli, PO Jeangilles, and PO Anderson are directly above § 87(2)(b) reaching for his hands. At 01:31, PO Neun punches § 87(2)(b) in the face, which is the only body part visible through the bodies of the officers. § 87(2)(b) turns his head to his right, and PO Neun strikes him at least twice more on the top of the head before his camera falls to the ground facedown. Though it is difficult to see § 87(2)(b) with so many officers around him, no officer is seen kicking him.

Annotated screenshots of PO Basile's BWC footage identify PO Porcelli and PO Neun amidst the crowd of officers (**73-74; 100-101 Board Review**).

PO Porcelli's and PO Neun's testimonies were largely consistent with each other. PO Porcelli stated that while on the ground, § 87(2)(b) was not complying and not giving his hands to the officers (**67 Board Review**). PO Porcelli stated that § 87(2)(b) tensed his arms to his chest and refused to allow officers to move his arms behind his back. PO Porcelli was directly on top of § 87(2)(b) at the time, his legs were on § 87(2)(b) legs, and his torso was over § 87(2)(b) torso. His body weight was not impeding § 87(2)(b) from getting his arms behind his back because PO Porcelli had his upper body lifted up and over § 87(2)(b) torso. PO Porcelli punched him five to ten times on his left side, in his ribs, to get him to comply and give the officers his hands. Shortly after, the officers managed to get him to comply and placed him in handcuffs. PO Neun stated he delivered approximately three closed fist strikes to the side of § 87(2)(b) head to gain compliance from him (**71 Board Review**). He delivered the strikes to the head because he was not in a good position to reach § 87(2)(b) arms as there were officers to the left and right of him. Less than a minute later, officers got § 87(2)(b) arms behind his back and handcuffed him.

Patrol Guide Procedure 221-01 (**72 Board Review**) states that force may be used when it is reasonable to ensure the safety of a member of the service [...] or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. In determining whether the use of force is

BWC evidence showed that at the time PO Porcelli and PO Neun punched § 87(2)(b) held his arm stiffly at his side, resisting officers' attempts to place it behind his back. At least three officers were actively attempting to handcuff § 87(2)(b) and several other officers were surrounding the group. § 87(2)(g)

Allegation (M) Discourtesy: On April 12, 2022, in front of 93-02 Sutphin Boulevard, in Queens, Police Officer Cody Duffy was discourteous to individuals.

A screenshot from PO Basile's BWC shows PO Duffy wearing a "Devil's Island" patch on the front of his uniform (**88 Board Review**). A blown-up image of the "Devil's Island" patch shows it depicts a blood-filled syringe, a grim reaper figure holding a scythe dripping blood, and the face of a devil-like figure, along with a pair of handcuffs, a gun, a police cruiser, and the words "Devil's Island / NYPD 103 PCT – Jamaica New York" (**89 Board Review**).

PO Duffy stated he was wearing a Devil's Island patch on his vest on the date of the incident. He stated it is a "morale patch" that was created a long time ago. He does not know what the patch means but stated it is the nickname for the 103 Precinct (**70 Board Review**).

Per NYPD Patrol Guide Procedure 200-02 (92 Board Review), as part of its core values, the NYPD maintains a higher standard of integrity than is generally expected of others. Additionally, it is the NYPD's mission to value human life, respect the dignity of each individual, and render their services with courtesy and civility. Per Administrative Guide 305-01 (93 Board Review), members of service must not modify prescribed uniforms in any manner except as explicitly authorized.

§ 87(2)(g)

It is therefore recommended that **Allegation M** be closed as **Substantiated**.

Allegation (N) Force: On April 13, 2022, at § 87(2)(b) Hospital, Police Officer Cody Duffy used physical force against § 87(2)(b)

Allegation (O) Force: On April 13, 2022, at § 87(2)(b) Hospital, Police Officer Cody Duffy hit § 87(2)(b) against an object.

§ 87(2)(b) stated he was taken to the hospital shortly after arriving at the 103rd Precinct stationhouse. At the hospital, he fell asleep after having tests done and when he woke up handcuffed to a bed, he was alone with PO Basile in a hospital room (**65 Board Review**). PO Duffy entered the room and began speaking quietly with PO Basile. Three minutes after waking up, § 87(2)(b) asked PO Duffy to use the bathroom. PO Duffy refused. § 87(2)(b) told the officers he was not going anywhere with the officers unless PO Duffy allowed him to use the bathroom. PO Duffy then uncuffed § 87(2)(b) from the bed, pulled him onto the floor by his shoulders, and handcuffed his arms behind his back. PO Duffy then lifted him to his feet. Once on his feet, PO Duffy escorted § 87(2)(b) to the entrance of the hospital, where he slammed § 87(2)(b) face against a sliding door and waited for PO Basile to follow him. PO Duffy took § 87(2)(b) to a police car outside, opened the door, and put him in the back. The two officers then drove § 87(2)(b) to the 103rd Precinct stationhouse. § 87(2)(b) failed to complete and return HIPAA forms sent to him by the CCRB.

There was no BWC footage from inside the hospital as recording within a medical facility, absent a mandatory recording event, is prohibited (**95 Board Review**). Once § 87(2)(b) returned to the 103rd Precinct, PO Basile's BWC (**54 Board Review**) at 01:00 captured § 87(2)(b) allege the use of force at the hospital. While he alleged, consistent with his statement to the CCRB, that PO Duffy pulled him from the hospital bed, § 87(2)(b) did not allege that any officer slammed his head into a door.

§ 87(2)(a) – PHL 18(6)

§ 87(2)(b) He was taken to Queens Central Booking on April 13, 2022, at 1:40 pm (**98 Board Review**). A photo of § 87(2)(b) attached to his TRI from the incident shows him with a light vertical abrasion to his left eye (**94 and 96 Board Reviews**). Based on the flooring and bed, he appears to be in the hospital when the photo is taken. § 87(2)(b) arrest photo, taken some time after his return from the hospital, shows a light abrasion under his left eye. He does not have any other apparent facial injuries (**97 Board Review**). Screenshots of § 87(2)(b) in front of the 103rd Precinct desk (**99 Board Review**) at 9:31pm on 4/12/22 from PO Buckleman's BWC (before he went to the hospital) and at 2:03 am on 4/13/22 from PO Basile's BWC (after he returned from the hospital) showed no discernable difference in the physical appearance of § 87(2)(b) face. While it appears as if § 87(2)(b) might have some swelling to his left cheekbone, based on the lighting it is not clear whether he has the vertical scratch as seen in the TRI or arrest photos.

PO Duffy stated that when he walked into the hospital, § 87(2)(b) woke up and immediately started screaming at PO Duffy (**70 Board Review**). § 87(2)(b) was handcuffed to a hospital bed at the time. When PO Duffy and PO Basile removed § 87(2)(b) handcuff and told him that they were leaving, § 87(2)(b) said, "I'm not leaving" and said he needed to use the bathroom. PO Duffy told § 87(2)(b)

he could use the bathroom back at the 103rd Precinct stationhouse and that he was not going to uncuff him to use the bathroom at the hospital. § 87(2)(b) continued to refuse to get out of his hospital bed. He then threw himself onto the floor, sprawled himself out, and started screaming. PO Duffy and PO Basile responded by rear handcuffing him, picking him up under his armpits, and carrying him out of the hospital to a police vehicle parked outside. § 87(2)(b) used his feet to an extent but dragged them along and resisted the officers' efforts to get him out of the hospital. Neither he nor PO Basile hit § 87(2)(b) face against a door at any point as they carried him out. PO Basile's testimony was consistent with PO Duffy's (75 Board Review).

§ 87(2)(g)

It is therefore recommended that **Allegation N** be closed as **unable to determine**.

§ 87(2)(g)

It is therefore recommended that **Allegation O** be closed as **unfounded**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (76 Board Review).
- § 87(2)(b)
- PO Anderson has been a member of service for 11 years and has been a subject in three other CCRB complaints and six allegations, of which two were substantiated.
 - 201803353 involved substantiated allegations of a threat of force and a discourtesy-word. The board recommended Command Discipline A and the NYPD imposed no disciplinary action.
- PO Duffy has been a member of service for four years and has been a subject in eight additional CCRB complaints and 33 allegations, of which one was substantiated:
 - 202001336 involved a substantiated allegation of a failure to provide RTKA card. The Board recommended Command Discipline A and the NYPD imposed no disciplinary action.
 - 202103241 is still open.
 - § 87(2)(g)
- PO Greaney has been a member of service for four years and is the subject in four additional ongoing CCRB complaints and 11 allegations.
 - 202107046 is still open.
 - 202200413 is still open.
 - 202202528 is still open.
- PO Harper has been a member of service for two years and has been a subject in two other CCRB complaints and two allegations, which were not substantiated.
 - 202300677 is still open.
- PO Jeangilles has been a member of service for four years and has been a subject in three other CCRB complaints and five allegations, none of which were substantiated.
 - 202203562 is still open.

- ## Mediation, Civil, and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED] [REDACTED] [REDACTED] [REDACTED]
- [REDACTED]
- [REDACTED] [REDACTED]
- [REDACTED]
- [REDACTED]

Reviewer: _____

_____ Signature	_____ Print Title & Name	_____ Date
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